

Bihar Reorganisation Act, 2000

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Union of India - Act

Bihar Reorganisation Act, 2000

UNION OF INDIA

India

Bihar Reorganisation Act, 2000

Act 30 of 2000

Published on 25 August 2000

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Bihar Reorganisation Act, 2000

Act

No. 30 of 2000

1452.

Object and Reasons. - In his Address delivered to Parliament on the 25th day of October, 1999, the President stated that necessary action would soon be initiated for the creation of a new State of Vananchal. The Bill seeks to give effect to that commitment. The Bill aims at reconstituting the existing State of Bihar into two separate States. However, the new State will be called Jharkhand.

2. The Bill provides for the territories of the two States and makes the necessary supplemental and incidental provisions relating to representation in Parliament and in the State Legislatures, distribution of revenues, apportionment of assets and liabilities, management and development of water resources and other matters.

3. The Government has set up a Unit in the Planning Commission under the direct charge of the Deputy Chairman, Planning Commission to deal exclusively with matters relating to the development of the rest of Bihar consequent upon the formation of the State of Jharkhand.

4. The proposed reorganisation of the existing State of Bihar will meet the democratic aspirations of the people of Jharkhand. Gazette of India, 25-7-2000. Pt. II-S. 2. Ext., p. 147 (No. 130).

[25th August, 2000]

An Act to provide for the reorganisation of the existing State of Bihar and for matters connected therewith.

Be it enacted by Parliament in the Fifty-first Year of the Republic of India as follows :-

Part I ? Preliminary

1.

Short title.

- This Act may be called the Bihar Reorganisation Act, 2000.

2.

Definitions.

- In this Act, unless the context otherwise requires,

(a)

"appointed [day]

[15th November, 2000, vide notification No. S.O. 829(E), dated 14th September, 2000]

" means the day which the Central Government may, by notification in the Official Gazette, appoint;

(b)

"article" means an article of the Constitution;

(c)

"assembly constituency", "council constituency" and "parliamentary constituency" have the same meanings as in the Representation of the People Act, 1950;

(d)

"Election commission" means the Election Commission appointed by the President under article 324;

(e)

"existing State of Bihar" means the State of Bihar as existing immediately before the appointed day;

(f)

"law" includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having, immediately before the appointed day, the force of law in the whole or in any Part of the existing State of Bihar;

(g)

"notified order" means an order published in the Official Gazette;

(h)

"population ratio" in relation to the States of Bihar and Jharkhand, means the ratio of 645.30:218.44;

(i)

"sitting member", in relation to either House of Parliament or of the Legislature of the existing State of Bihar, means a person who immediately before the appointed day, is a member of that House;

(j)

"successor State", in relation to the existing State of Bihar, means the State of Bihar or Jharkhand;

(k)

"transferred territory" means the territory which on the appointed day is transferred from the existing State of Bihar to the State of Jharkhand;

(l)

"treasury" includes a sub-treasury; and

(m)

any reference to a district, tahsil or other territorial division of the existing State of Bihar shall be construed as a reference to the area comprised within that territorial division on the appointed day.

Part II ? Reorganisation Of The State Of Bihar

3.

Formation of Jharkhand State.

- On and from the appointed day, there shall be formed a new State to be known as the State of Jharkhand comprising the following territories of the existing State of Bihar, namely :
Bokaro, Chatra, Deogarh, Dhanbad, Dumka, Garhwa, Giridih, Godda, Gumla, Hazaribagh, Kodarma, Lohardaga, Pakur, Palamau, Ranchi, Sahebganj, Singhbhum (East) and Singhbhum (West) districts;
and thereupon the said territories shall cease to form Part of the existing State of Bihar.

4.

State of Bihar and territorial divisions thereof.

- On and from the appointed day, the State of Bihar shall comprise the territories of the existing State of Bihar other than those specified in section 3.

5.

Amendment of the First Schedule to the Constitution.

- On and from the appointed day, in the First Schedule to the Constitution, under the heading "I. THE STATES"-

(a)

in the paragraph relating to the territories of the State of Bihar, the following shall be added at the end, namely :
"and the territories specified in section 3 of the Bihar Reorganisation Act, 2000";

(b)

after entry 27, the following entry shall be inserted, namely :

"28. Jharkhand : The territories specified in section 3 of the Bihar Reorganisation Act, 2000."

6.

Saving powers of State Governments.

- Nothing in the foregoing provisions of this shall be deemed to affect the power of the Government of Bihar or Jharkhand to alter, after the appointed day, the name, area or boundaries of any district or other territorial division in the State.

Part III ? Representation In The Legislatures

The Council of States

7.

Amendment of the Fourth Schedule to the Constitution.

- On and from the appointed day, in the Fourth Schedule to the Constitution, in the Table,

(a)

entries 4 to 29 shall be renumbered as entries 5 to 30 respectively;

(b)

in entry 3, for the figures "22" the figures "16" shall be substituted;

(c)

after entry 3, the following entry shall be inserted, namely :

"4. Jharkhand 6"

8.

Allocation of sitting members.

(1)

On and from the appointed day, the twenty-two sitting members of the Council of States representing the existing State of Bihar shall be deemed to have been elected to fill the seats allotted to the States of Bihar and Jharkhand, as specified in the First Schedule to this Act.

(2)

The term of office of such sitting members shall remain unaltered. The House of the People

9.

Representation In the House of the People.

- On and from the appointed day, there shall be allocated 40 seats to the successor State of Bihar, and 14 to the successor State of Jharkhand, in the House of the People and in the First Schedule to the Representation of the People Act, 1950, under heading "I. STATES"

(a)

for entry 4, the following entry shall be substituted, namely :-

"4. Bihar 53 7 5 40 7 ..";

(b)

entries 10 to 25 shall be renumbered as entries 11 to 26 respectively;

(c)

after entry 9, the following entry shall be inserted, namely:-

"10. Jharkhand 14 1 5"

10.

Delimitation of Parliamentary and Assembly Constituencies.

- On and from the appointed day, the Delimitation of Parliamentary and Assembly Constituencies Order, 1976, shall stand amended as directed in the Second Schedule to this Act.

11.

Provision as to sitting members.

(1)

Every sitting member of the House of the People representing a constituency which, on the appointed day by virtue of the provisions of section 10, stands allotted, with or without alteration of boundaries, to the successor State of Bihar or Jharkhand, shall be deemed to have been elected to the House of the People by that constituency as so allotted.

(2)

The term of office of such sitting members shall remain unaltered. The Legislative Assembly

12.

Provisions as to Legislative Assemblies.

(1)

The number of seats as on the appointed day in the Legislative Assemblies of the States of Bihar and Jharkhand shall be two hundred and forty-three and eighty-one respectively.

(2)

In the Second Schedule to the Representation of the People Act, 1950, under heading "1. States"-

(a)

for entry 4, the following entry shall be substituted, namely:-

"4. Bihar 318 45 29 243 39 ..";

(b)

entries 11 to 27 shall be renumbered as entries 12 to 28 respectively;

(c)

after entry 10, the following entry shall be inserted, namely :-

"11. Jharkhand 81 9 28".

13.

Allocation of sitting members.

(1)

Every sitting member of the Legislative Assembly of the existing State of Bihar elected to fill a seat in that Assembly from a constituency which on the appointed day by virtue of the provisions of section 10 stands allotted, with or without alteration of boundaries, to the State of Jharkhand shall, on and from that day, cease to be a member of the Legislative Assembly of Bihar and shall be deemed to have been elected to fill a seat in the Legislative Assembly of Jharkhand from that constituency as so allotted.

(2)

All other sitting members of the Legislative Assembly of the existing State of Bihar shall continue to be members of the Legislative Assembly of that State and any such sitting member representing a constituency the extent, or the name and extent of which are altered by virtue of the provisions of section 10 shall be deemed to have been elected to the Legislative Assembly of Bihar by that constituency as so altered.

(3)

Notwithstanding anything contained in any other law for the time being in force, the Legislative Assemblies of Bihar and Jharkhand shall be deemed to be duly constituted on the appointed day.

(4)

The sitting member of the Legislative Assembly of the existing State of Bihar nominated to that Assembly under article 333 to represent the Anglo-Indian community shall be deemed to have been nominated to represent the said community

in the Legislative Assembly of Jharkhand under that article.

14.

Duration of Legislative Assemblies.

-The period of five years referred to in clause (1) of article 172 shall, in the case of Legislative Assembly of the State of Bihar or Jharkhand be deemed to have commenced on the date on which it actually commenced in the case of Legislative Assembly of the existing State of Bihar.

15.

Speaker and Deputy Speaker.

(1)

The persons who immediately before the appointed day are the Speaker and Deputy Speaker of the Legislative Assembly of the existing State of Bihar shall continue to be the Speaker and Deputy Speaker respectively of that Assembly on and from that day.

(2)

As soon as may be after the appointed day, the Legislative Assembly of Jharkhand shall choose two members of that Assembly to be respectively Speaker and Deputy Speaker thereof and until they are so chosen, the duties of the office of Speaker shall be performed by such member of the Assembly as the Governor may appoint for the purpose.

16.

Rules of procedure.

- The rules of procedure and conduct of business of the Legislative Assembly of Bihar as in force immediately before the appointed day shall, until rules are made under clause (1) of article 208, be the rules of procedure and conduct of business of the Legislative Assembly of Jharkhand, subject to such modifications and adaptations as may be made therein by the Speaker thereof.

The Legislative Council Of Bihar

17.

Legislative Council of Bihar.

- On and from the day on which all the members specified in the Third Schedule retire, there shall be seventy-five seats in the Legislative Council of Bihar, and in the Third Schedule to the Representation of the People Act, 1950, for the existing entry 2, the following entry shall be substituted, namely :

"2. Bihar 75 24 6 6 27 12"

18.

Council constituencies.

- On and from the appointed day, the Delimitation of Council Constituencies (Bihar) Order, 1951 shall stand amended as directed in the Fourth Schedule.

19.

Provision as to sitting members.

- Notwithstanding anything contained in section 17, all sitting members of the Legislative Council of the existing State of Bihar, shall continue to be members of that Council till they retire on the expiration of their present term of office.

20.

Chairman and Deputy Chairman.

- The person who immediately before the appointed day is the Chairman or Deputy Chairman of the Legislative Council of the existing State of Bihar shall continue to be the Chairman or Deputy Chairman, as the case may be, on and from that day of that Council.

Delimitation Of Constituencies

21.

Delimitation of constituencies.

- (I) For the purpose of giving effect to the provisions of section 12, the Election Commission shall determine in the manner hereinafter provided

(a)

the number of seats to be reserved for the Scheduled Castes and the Scheduled Tribes in the Legislative Assemblies of the States of Bihar and Jharkhand respectively, having regard to the relevant provisions of the Constitution;

(b)

the assembly constituencies into which each State referred to in clause (a) shall be divided, the extent of each of such constituencies and in which of them seats shall be reserved for the Scheduled Castes or for the Scheduled Tribes; and

(c)

the adjustments in the boundaries and description of the extent of the parliamentary constituencies in each successor States that may be necessary or expedient.

(2)

In determining the matters referred to in clauses (b) and (c) of sub-section (1), the Election Commission shall have regard to the following provisions, namely :

(a)

all the constituencies shall be single-member constituencies;

(b)

all constituencies shall, as far as practicable, be geographically compact areas, and in delimiting them, regard shall be had to physical features, existing boundaries of administrative units, facilities of communication and conveniences to the public; and

(c)

constituencies in which seats are reserved for the Scheduled Castes and the Scheduled Tribes shall, as far as practicable, be located in areas where the proportion of their population to the total population is the largest.

(3)

The Election Commission shall, for the purpose of assisting it in the performance of its functions under sub-section (1), associate with itself as associate members, five persons as the Central Government may by order specify, being persons who are members of the Legislative Assembly of the State or of the House of the People representing the State :

Provided that none of the associate members shall have a right to vote or to sign any decision of the Election Commission.

(4)

If, owing to death or resignation, the office of an associate member falls vacant, it shall be filled as far as practicable, in accordance with the provisions of sub-section (3).

(5)

The Election Commission shall

(a)

publish its proposals for the delimitation of constituencies together with the dissenting proposals, if any, of any associate member who desires publication thereof in the Official Gazette and in such other manner as the Commission may consider fit, together with a notice inviting objections and suggestions in relation to the proposals and specifying a date on or after which the proposals will be further considered by it;

(b)

consider all objections and suggestions which may have been received by it before date so specified;

(c)

after considering all objections and suggestions which may have been received by it before the date so specified, determine by one or more orders the delimitation of constituencies and cause such order or orders to be published in the Official Gazette; and upon such publication, the order or orders shall have the full force of law and shall not be called in question in any Court.

(6)

As soon as may be after such publication, every such order relating to assembly constituencies shall be laid before the Legislative Assembly of the concerned State.

(7)

The delimitation of constituencies in the States of Bihar and Jharkhand shall be determined on the basis of the published figures of the census taken in the year 1971.

22.

Power of the Election Commission to maintain Delimitation Orders up-to-day.

(1)

The Election Commission may, from time to time, by notification in the Official Gazette,-

(a)

correct any printing mistakes in any order made under section 21 or any error arising therein from inadvertent slip or omission.

(b)

where the boundaries or name of any territorial division mentioned in any such order or orders is or are altered, make such amendments as appear to it be necessary or expedient for bringing such order up-to-date.

(2)

Every notification under this section relating to an assembly constituency shall be laid, as soon as may be after it is issued, before the concerned Legislative Assembly.

d Castes And Scheduled Tribes

23.

Amendment of the Scheduled Castes Order.

- On and from the appointed day, the Constitution (Scheduled Castes) Order, 1950, shall stand amended as directed in the Fifth Schedule.

24.

Amendment of the Scheduled Tribes Order.

- On and from the appointed day, the Constitution (Scheduled Tribes) Order, 1950, shall stand amended as directed in the Sixth Schedule.

Part V ? High Court

25.

High Court of Jharkhand.

(1)

On and from the appointed day, there shall be a separate High Court for the State of Jharkhand (hereinafter referred to as the High Court of Jharkhand) and the High Court at Patna shall become the High Court for the State of Bihar (hereinafter referred to as the High Court at Patna).

(2)

The principal seat of the High Court of Jharkhand shall be at such place as the President may, by notified order, appoint.

(3)

Notwithstanding anything contained in sub-section (2), the Judges and division courts of the High Court of Jharkhand may sit at such other place or places in the State of Jharkhand other than its principal seat as the Chief Justice may, with the approval of the Governor of Jharkhand, appoint.

26.

Judges of High Court.

(1)

Such of the Judges of the High Court at Patna holding office immediately before the appointed day as may be determined by the President shall on that day cease to be Judges of the High Court at Patna and become Judges of the High Court of Jharkhand.

(2)

The persons who by virtue of sub-section (1) become Judges of the High Court of Jharkhand shall, except in the case where any such person is appointed to be the Chief Justice of that High Court, rank in that Court accounting to the priority of their respective appointment as Judges of the High Court of Patna.

27.

Jurisdiction of High Court.

- The High Court of Jharkhand shall have, in respect of any of the territories included in the State of Jharkhand, all such jurisdiction, powers and authorities as, under the law in force immediately before the appointed day, are exercisable in respect of that of the said territories by High Court at Patna.

28.

Special provision relating to Bar Council and Advocates.

(1)

On and from the appointed day, in the Advocates Act, 1961, in section 3, in sub-section (1), in clause (a), after the words "Jammu and Kashmir" the word "Jharkhand" shall be inserted.

(2)

Any person who immediately before the appointed day is an advocate on the roll of the Bar Council of the existing State of Bihar may give his option in writing, within one year from the appointed day to the Bar Council of such existing State, to transfer his name on the roll of the Bar Council of Jharkhand and notwithstanding anything contained in the Advocates Act, 1961 and the rules made thereunder, on such option so given his name shall be deemed to have been transferred on the roll of the Bar Council of Jharkhand with effect from the date of the option so given for the purposes of the said Act and the rules made thereunder.

(3)

The person other than the advocates who are entitled immediately before the appointed day, to practise in the High Court at Patna or any subordinate court thereof shall, on and after the appointed day, be recognised as such persons entitled also to practise in the High Court of Jharkhand or any subordinate court thereof, as the case may be.

(4)

The right of audience in the High Court of Jharkhand shall be regulated in accordance with the like principles as, immediately before the appointed day, are in force with respect to the right of audience in the High Court at Patna.

29.

Practice and procedure in common High Court.

- Subject to the provisions of this Part, the law in force immediately before the appointed day with respect to practice and procedure in the High Court at Patna shall, with the necessary modifications, apply in relation to the High Court of Jharkhand, and accordingly, the High Court of Jharkhand shall have all such powers to make rules and orders with respect to practice and procedure as immediately before the appointed day exercisable by the High Court at Patna :

Provided that any rules or orders which are in force immediately before the appointed day with respect to practice and procedure in the High Court at Patna shall, until varied or revoked by rules or orders made by the High Court of Jharkhand, apply with the necessary modifications in relation to practice and procedure in the Court of Jharkhand as if made by that Court.

30.

Custody of seal of High Court.

- The law in force immediately before the appointed day with respect to the custody of the seal of the High Court at Patna shall with the necessary modifications, apply with respect to the custody of the seal of the High Court of Jharkhand.

31.

Form of writs and other processes.

- The law in force immediately before the appointed day with respect to the form of writs and special processes used, issued or awarded by the High Court at Patna shall, with the necessary modifications, apply with respect to the form of writs and other processes used, issued or awarded by the High Court of Jharkhand.

32.

Powers of Judges.

-The law in force immediately before the appointed day relating to the powers of the Chief Justice, single Judges and division courts of the High Court at Patna with respect to all matters ancillary to the exercise of those powers shall, with the necessary modification, apply in relation to the High Court of Jharkhand.

33.

Procedure as to appeals to Supreme Court.

-The law in force immediately before the appointed day relating to appeals to the Supreme Court from the High Court at Patna and the Judges and division courts thereof shall, with the necessary modification, apply in relation to the High Court of Jharkhand.

34.

Transfer of proceeding from High Court at Patna to High Court of Jharkhand.

(1)

Except as hereinafter provided, the High Court at Patna shall, as from the appointed day, have no jurisdiction in respect of the transferred territory.

(2)

Such proceedings pending in the High Court at Patna immediately before the appointed day as are certified, whether

before or after that day, by the Chief Justice of the High Court, having regard to the places of accrual of the cause of action and other circumstances, to be proceedings which are ought to be heard and decided by the High Court of Jharkhand shall as soon as may be after such certification, be transferred to the High Court of Jharkhand.

(3)

Notwithstanding anything contained in sub-sections (1) and (2) of this section or in section 27, but save as hereinafter provided, the High Court at Patna shall have, and the High Court of Jharkhand shall not have, jurisdiction to entertain, hear or dispose of appeals, applications for leave to appeal to the Supreme Court, applications for review and other proceedings where any such proceedings seek any relief in respect of any order passed by the High Court at Patna before the appointed day :

Provided that if after such proceedings have been entertained by the High Court at Patna, it appears to the Chief Justice of the High Court that they ought to be transferred to the High Court of Jharkhand, he shall order that they shall be so transferred, and such proceedings shall thereupon be transferred accordingly.

(4)

Any order made by the High Court at Patna

(a)

before the appointed day, in any proceeding to the High Court of Jharkhand by virtue of sub-section (2), or

(b)

in any proceeding with respect to which the High Court at Patna retains jurisdiction by virtue of sub-section (3) shall for all purposes have effect, not only as an order of the High Court at Patna, but also as an order made by the High Court of Jharkhand.

35.

Right to appear or to act in proceedings transferred to High Court of Jharkhand.

- Any person, who immediately before the appointed day, is an advocate entitled to practice or an attorney entitled to act, in the High Court at Patna and so authorised to appear or to act in any proceedings transferred from that High Court to the High Court of Jharkhand under section 34 shall have the right to appear or to act, as the case may be, in the High Court of Jharkhand in relation to those proceedings.

36.

Interpretation.

- For the purposes of section 34

(a)

proceedings shall be deemed to be pending in a Court until that Court has disposed of all issues between the parties, including any issues between the Parties, including any issues with respect to the taxation of the costs of the proceedings and shall include appeals, applications for leave to appeal to the Supreme Court, application for review, petitions for revision and petitions for writs :

(b)

references to a High Court shall be construed as including references to a Judge or division Court thereof, and reference to order made by a Court or the Judge shall be construed as including references to a sentence, judgment or decree passed or made by that Court or Judge.

37.

Saving.

- Nothing in this part shall affect the application to the High Court of Jharkhand of any provisions of the Constitution; and this part shall have effect subject to any provision that may be made on or after the appointed day with respect to that High Court by any Legislature or other authority having power to make such provision.

Part V ? Authorisation Of Expenditure And Distribution Of Revenues

38.

Authorisation of expenditure of Jharkhand State.

- The Governor of Bihar may, at any time before the appointed day, authorise such expenditure from the Consolidated Fund of the State of Jharkhand as he deems necessary for any period not more than six months beginning with the appointed day pending the sanction of such expenditure by the Legislative Assembly of the State of Jharkhand :

Provided that the Governor of Jharkhand may, after the appointed day, authorise such further expenditure as he deems necessary from the Consolidated Fund of the State of Jharkhand for any period not extending beyond the said period of

six months.

39.

Reports relating to accounts of Bihar State.

(1)

The reports of the Comptroller and Auditor-General of India referred to in clause (2) of Article 151 relating to the accounts of the existing State of Bihar in respect of any period prior to the appointed day shall be submitted to the Governor of each of the successor States of Bihar and Jharkhand who shall cause them to be laid before the Legislature of that State.

(2)

The President, after considering the views of the State Legislatures of the successor States, may by order

(a)

declare any expenditure incurred out of the Consolidated Fund of Bihar on any service in respect of any period prior to the appointed day during the financial year or in respect of any earlier financial year in excess of the amount granted for that service and for that year as disclosed in the reports referred to in sub-section (1) to have been duly authorised; and

(b)

provide for any action to be taken on any matter arising out of the said reports.

40.

Distribution of revenue.

- The President shall, by order, determine the share of States of Bihar and Jharkhand in the total amount payable to the existing State of Bihar on the recommendation of the Finance Commission constituted under Article 280 of the Constitution. in such manner as he thinks fit.

Part VI ? Apportionment Of Assets And Liabilities

41.

Application of Part.

(1)

The provisions of this part shall apply in relation to the apportionment of the assets and liabilities of the existing State of Bihar immediately before the appointed day.

(2)

The successor States shall be entitled to receive benefits arising out of the decisions taken by the predecessor State and the successor States shall be liable to bear the financial liabilities arising out of the decisions taken by the existing State of Bihar.

(3)

The apportionment of assets and liabilities would be subject to such financial adjustment as may be necessary to secure just, reasonable and equitable apportionment of the assets and liabilities amongst the successor States.

(4)

Any dispute regarding the amount of financial assets and liabilities shall be settled through mutual agreement, failing which by order, by the Central Government on the advice of the Comptroller and Auditor-General of India.

42.

Land and goods.

(1)

Subject to other provisions of this part, all land and all stores, articles and other goods belonging to the existing State of Bihar shall,

(a)

if within the transferred territory, pass to the State of Jharkhand; or

(b)

in any other case, remain the property of the State of Bihar :

Provided that where the Central Government is of opinion that any goods or class of goods should be distributed between the States of Bihar and Jharkhand, otherwise that according to the situation of the goods, the Central Government may issue such directions as it thinks fit for a just and equitable distribution of the goods and the goods shall pass to the successor State accordingly.

(2)

Stores held for specific purposes, such as use or utilisation in particular institutions, workshops or undertakings or on particular works under construction, shall pass to the successor States in whose territories such institutions, workshops, undertakings or works are located.

(3)

Stores relating to the Secretariat and offices of Heads of Departments having jurisdiction over the whole of the existing State of Bihar shall be divided as may be agreed upon between the successor States, or in default of such agreement, as the Central Government may by order direct for a just and equitable distribution of such stores.

(4)

Any other unissued stores of any class in the existing State of Bihar shall be divided between the successor States in proportion to the total stores of that class purchased in the period of three years prior to the appointed day, for the territories of the existing State of Bihar included respectively in each of the successor States :

Provided that where such proportion cannot be ascertained in respect of any class of stores or where the value of any class of such stores does not exceed rupees ten thousand, that class of stores shall be divided between the successor States according to the population ratio.

(5)

In this section the expression "land" includes immovable property of every kind and any rights in or over such property, and the expression "goods" does not include coins, bank notes and currency notes.

43.

Treasury and bank balances.

- The total of the cash balances in all treasuries of the State of Bihar and the credit balances of the State with Reserve Bank of India, the State Bank of India or any other bank immediately before the appointed day shall be divided between the States of Bihar and Jharkhand according to the population ratio :

Provided that for the purpose of such division, there shall be no transfer of cash balances from any treasury to any other treasury and the apportionment shall be effected by adjusting the credit balance of the two States in the books of the Reserve Bank of India on the appointed day.

Provided further that if the State of Jharkhand has no account on the appointed day with the Reserve Bank of India, the adjustment shall be made in such manner as the Central Government may, by order, direct.

44.

Arrears of taxes.

- The right to recover arrears of any tax or duty on property, including arrears of land revenue, shall belong to the successor State in which the property is situated, and the right to recover arrears of any other tax or duty shall belong to the successor State in whose territories the place of assessment of that tax or duty is included on the appointed day.

45.

Right to recover loans and advances.

(1)

The right of the existing State of Bihar to recover any loans or advances made before the appointed day to any local body, society, agriculturist or other person in an area within that State shall belong to the successor State in which that area is included on that day.

(2)

The right of the existing State of Bihar to recover any loans or advances made before the appointed day to any person or institution outside that State shall belong to the State of Bihar :

Provided that any sum recovered in respect of any such loan or advance shall be divided between the States of Bihar and Jharkhand according to the population ratio.

46.

Investments and Credits in certain funds.

(1)

The securities held in respect of the investments made from Cash Balances Investment Account or from any Fund in the Public Account of the existing State of Bihar as specified in the Seventh Schedule shall be apportioned in the ratio of population of the successor States :

Provided that the securities held in investments made from the Calamity Relief Fund of the existing State of Bihar shall be divided in the ratio of the area of the territories occupied by the successor States :

Provided further that the balance in the Reserve Funds in the Public Account of Bihar created wholly out of appropriations from the Consolidated Fund of the existing State of Bihar, to the extent the balances have not been invested outside Government account, shall not be carried forward to similar Reserve Funds in the Public Account of, successor States.

(2)

The investments of the existing State of Bihar immediately before the appointed day, in any special fund, the objects of which are confined to a local area, shall belong to the State in which that area is included on the appointed day.

(3)

The investments of the existing State of Bihar immediately before the appointed day in any private, commercial or industrial undertaking, insofar as such investments have not been made or are deemed not to have been made from the cash balance investment account, shall pass to the State in which the principal seat of business of the undertaking is located.

(4)

Where any body corporate constituted under a Central Act, State Act or Provincial Act for the existing State of Bihar or any part thereof has, by virtue of the provisions of part 11, becomes an inter-State body corporate, the investments in, or loans or advances to any such body corporate by the existing State of Bihar made before the appointed day shall, save as otherwise expressly provided by or under this Act, be divided between the States of Bihar and Jharkhand in the same proportion in which the assets of the body corporate are divided under the provisions of this part.

47.

Assets and liabilities of State undertakings.

(1)

The assets and liabilities relating to any commercial or industrial undertaking of the existing State of Bihar shall pass to the State in which the undertaking is located.

(2)

Where a depreciation reserve fund is maintained by the existing State of Bihar for any such commercial or industrial undertaking, the securities held in respect of investments made from that fund shall pass to the State in which the undertaking is located.

48.

Public debt.

(1)

All liabilities on account of Public Debt and Public Account of the existing State of Bihar outstanding immediately before the appointed day shall be apportioned in the ratio of population of the successor States unless a different mode of apportionment is provided under the provisions of this Act.

(2)

The individual items of liabilities to be allocated to the successor States and the amount of contribution required to be made by one successor State to another shall be such as may be ordered by the Central Government in consultation with the Comptroller and Auditor General of India : Provided that till such orders are issued, the liabilities on account of Public Debt and Public Account of the existing State of Bihar shall continue to be the liabilities of the successor State of Bihar.

(3)

The liability on account of loans raised from any source and re-lent by the existing State of Bihar to such entities as may be specified by the Central Government and whose area of operation is confined to either of the successor States shall devolve on the respective States as specified in sub-section (4).

(4)

The public debt of the existing State of Bihar attributable to loan taken from any source for the express purpose of re-lending the same to a specific institution and outstanding immediately before the appointed day shall

(a)

if re-lent to any local body, body corporate or other institution in any local area, be the debt of the State in which the local area is included on the appointed day; or

(b)

if re-lent to the Bihar State Electricity Board, the Bihar State Road Transport Corporation, or the Bihar Housing Board or

any other institution which becomes an inter-State institution on the appointed day, be divided between the States of Bihar and Jharkhand in the same proportion in which the assets of such body corporate or institution are divided under the provisions of Part VII of this Act.

(5)

Where a sinking fund or a depreciation fund is maintained by the existing State of Bihar for repayment of any loan raised by it, the securities held in respect of investments made from that fund shall be divided between the successor States of Bihar and Jharkhand in the same proportion in which the total public debt is divided between the two States under this section.

(6)

In this section, the expression "Government security" means a security created and issued by a State Government for the purpose of raising a public loan and having any of the forms specified in, or prescribed under clause (2) of section 2 of the Public Debt Act, 1944.

49.

Floating Debt.

-The liability of the existing State of Bihar in respect of any floating loan to provide short-term finance to any commercial undertaking shall be the liability of the State in whose territories the undertaking is located.

50.

Refund of taxes collected in excess.

- The liability of the existing State of Bihar to refund any tax or duty on property, including land revenue, collected in excess shall be the liability of the successor State in whose territories the property is situated, and the liability of the existing State of Bihar to refund any other tax or duty collected in excess shall be the liability of the successor State in whose territories the place of assessment of that tax or duty is included.

51.

Deposits, etc.

(1)

The liability of the existing State of Bihar in respect of any civil deposit or loan fund deposit shall, as from the appointed day, be the liability of the State in whose area the deposit has been made.

(2)

The liability of the existing State of Bihar in respect of any charitable or other endowment shall, as from the appointed day, be the liability of the State in whose area the institution entitled to the benefit of the endowment is located or of the State to which the objects of the endowment under the terms thereof, are confined.

52.

Provident fund.

- The liability of the existing State of Bihar in respect of the provident fund account of a Government servant in service on the appointed day shall, as from that day, be the liability of the State to which that Government servant is permanently allotted.

53.

Pensions.

- The liability of the existing State of Bihar in respect of pensions and other retirement benefits shall pass to, or be apportioned between, the successor States of Bihar and Jharkhand in accordance with the provisions contained in the Eighth Schedule to this Act.

54.

Contracts.

(1)

Where, before the appointed day, the existing State of Bihar has made any contract in the exercise of its executive power for any purposes of the State, that contract shall be deemed to have been made in the exercise of the executive power

(a)

if the purposes of the contract are, on and from the appointed day, exclusive purposes of either of the successor States of Bihar and Jharkhand; and

(b)

any other case, of the State of Bihar; and all rights and liabilities which have accrued, or may accrue under any such contract shall, to the extent to which they would have been rights or liabilities of the existing State of Bihar, be rights or liabilities of the State of Jharkhand or the State of Bihar, as the case may be :

Provided that in any such case as is referred to in clause (b), the initial allocation of rights and liabilities made by this sub-section shall be subject to such financial adjustment as may be agreed upon between the successor States of Bihar and Jharkhand or in default of such agreement, as the Central Government may, by order, direct.

(2)

For the purposes of this section, there shall be deemed to be included in the liabilities which have accrued or may accrue under any contract

(a)

any liability to satisfy an order or award made by any Court or other Tribunal in proceedings relating to the contract; and

(b)

any liability in respect of expenses incurred in or in connection with any such proceedings.

(3)

This section shall have effect subject to the other provisions of this part relating to the apportionment of liabilities in respect of loans, guarantees and other financial obligations; and bank balances and securities shall, notwithstanding that they partake of the nature of contractual rights, be dealt with under those provisions.

55.

Liability in respect of actionable wrong.

- Where, immediately before the appointed day, the existing State of Bihar is subject to any liability in respect of any actionable wrong other than breach of contract, that liability shall

(a)

if the cause of action arose wholly within the territories which, as from that day, are the territories of either of the successor States of Bihar or Jharkhand, be a liability of that successor State; and

(b)

in any other case, be initially a liability of the State of Bihar, but subject to such financial adjustment as may be agreed upon between the States of Bihar and Jharkhand or, in default of such agreement, as the Central Government may, by order, direct.

56.

Liability as guarantor.

- Where, immediately before the appointed day, the existing State of Bihar is liable as guarantor in respect of any liability of a registered co-operative society or other person, that liability of the existing State of Bihar shall

(a)

if the area of operations of such society of persons is limited to the territories which, as from that day, are the territories of either of the State of Bihar or Jharkhand be a liability of that successor State; and

(b)

in any other case, be initially a liability of the State of Bihar, subject to such financial adjustment as may be agreed upon between the States of Bihar and Jharkhand or, in default of such agreements, as the Central Government may, by order, direct.

57.

Items in suspense.

- If any item in suspense is ultimately found to affect an asset or liability of the nature referred to in any of the foregoing provisions of this part, it shall be dealt with in accordance with the provision.

58.

Residuary provision.

- The benefit or burden of any asset or liability of the existing State of Bihar not dealt with in the foregoing provisions of this part shall pass to the State of Bihar in the first instance, subject to such financial adjustment as may be agreed upon between the State of Bihar and Jharkhand or, in default of such agreement, as the Central Government may, by order, direct.

59.

Apportionment of assets or liability by agreement.

- Where the successor States of Bihar and Jharkhand agree that the benefit or burden of any particular asset or liability should be apportioned between them in a manner other than that provided for in the foregoing provisions of this Part, notwithstanding anything contained therein, the benefit or burden of that asset or liability shall be apportioned in the manner agreed upon.

60.

Power of Central Government to order allocation or adjustment in certain cases.

- Where, by virtue of any of the provisions of this Part, any of the successor States of Bihar and Jharkhand becomes entitled to any property or obtains any benefits or becomes subject to any liability, and the Central Government is of opinion, on a reference made within a period of three years from the appointed day by either of the States, that it is just and equitable that property or those benefits should be transferred to, or shared with, the other successor State, or that a contribution towards that liability should be made by the other successor State, the said property or benefits shall be allocated in such manner between the two States, or the other State shall make to the State subject to the liability such contribution in respect thereof, as the Central Government may, after consultation with the two State Governments, by order, determine.

61.

Certain expenditure to be charged on Consolidated Fund.

- All sums payable either by the State of Bihar or by the State of Jharkhand to the other States or by the Central Government to either of those States, by virtue of the provisions of this Act, shall be-charged on the Consolidated Fund of the State by which such sums are payable or, as the case may be, the Consolidated Fund of India.

Part VII ? Provisions As To Certain Corporations

62.

Provisions as to Bihar State Electricity Board, State Warehousing Corporation and State Road Transport Corporation.

(1)

The following bodies corporate constituted for the existing State of Bihar namely :

(a)

the State Electricity Board constituted under the Electricity Supply Act, 1948;

(b)

the State Warehousing Corporation established under the Warehousing Corporations Act, 1962;

(c)

the State Road Transport Corporation established under the Road Transport Act, 1950, shall, on and from the appointed day, continue to function in those areas in respect of which they were functioning immediately before that day, subject to the provisions of this section and to such directions as may, from time to time, be issued by the Central Government.

(2)

Any directions issued by the Central Government under sub-section (1) in respect of the Board or the Corporation shall include a direction that the Act under which the Board or the Corporation was constituted shall, in its application to that Board or Corporation, have effect subject to such exceptions and modifications as the Central Government thinks fit.

(3)

The Board or the Corporation referred to in sub-section (1) shall cease to function as from, and shall be deemed to be dissolved on such date as the Central Government may by order, appoint; and upon such dissolution, its assets, rights and liabilities shall be apportioned between the successor States of Bihar and Jharkhand in such manner as may be agreed upon between them within one year of the dissolution of the Board or the Corporation. as the case may be, or if no agreement is reached, in such manner as the Central Government may, by order, determine:

Provided that any liabilities of the said Board relating to the unpaid dues of the coal supplied to the Board by any public sector coal company shall be provisionally apportioned between the State Electricity Boards constituted respectively in the successor States of the existing State of Bihar or after the date appointed for the dissolution of the Board under this sub-section in such manner as may be agreed upon between the Governments of the successor States within one month of such dissolution or if no agreement is reached, in such manner as the Central Government may, by order, determine subject to reconciliation and finalisation of the liabilities which shall be completed within three months from the date of such dissolution by the mutual agreement between the successor States or failing such agreement by the direction of the Central Government :

Provided further that an interest at the rate of two per cent. higher than the Cash Credit interest shall be paid on

outstanding unpaid dues of the coal supplied to the Board by the public sector coal company till the liquidation of such dues by the concerned State Electricity Board constituted in the successor States on or after the date appointed for the dissolution of the Board under this sub-section.

(4)

Nothing in the preceding provisions of this section shall be construed as preventing the Government of the State of Bihar, or, as the case may be, the Government of the State of Jharkhand from constituting, at any time on or after the appointed day, a State Electricity Board or a State Warehousing Corporation or a Road Transport Corporation for the State under the provisions of the Act relating to such Board or Corporation; and if such a Board or Corporation is so constituted in either of the States before the dissolution of the Board or the Corporation referred to in sub-section (1),

(a)

provision may be made by order of the Central Government enabling the new Board or the new Corporation to take over from the existing Board or Corporation all or any of its undertakings, assets, rights and liabilities in that State, and

(b)

upon the dissolution of the existing Board or Corporation,

(i)

any assets, rights and liabilities which would otherwise have passed to that State by or under the provisions of sub-section (3) shall pass to the new Board or the new Corporation instead of to that State;

(ii)

any employee who would otherwise have been transferred to or re-employed by that State under sub-section (3), read with clause (i) of sub-section (5), shall be transferred to or re-employed by the new Board or the new Corporation instead of to or by that State.

(5)

An agreement entered into between the successor States under sub-section (3) and an order made by the Central Government under that sub-section or under clause (a) of subsection (4) may provide for the transfer or re-employment of any employee of the Board or the Corporation referred to in sub-section (1),

(i)

to or by the successor States, in the case of an agreement under sub-section (4) or an order made under that sub-section;

(ii)

to or by the new Board or the new Corporation constituted under sub-section (4), in the case of an order made under clause (a) of that sub-section, and subject to the provisions of section 65, also for the terms and conditions of service applicable to such employees after such transfer or re-employment.

63.

Continuance of arrangements In regard to generation and supply of electric power and supply of water.

- If it appears to the Central Government that the arrangement in regard to the generation or supply of electric power or the supply of water for any area or in regard to the execution of any project for such generation or supply has been or is likely to be modified to the disadvantage of that area by reason of the fact that it is, by virtue of the provisions of Part II of this Act, outside the State in which the power stations and other installations for the generation and supply of such power, or the catchment area, reservoirs and other works for the supply of water, as the case may be, are located, the Central Government may give such directions as it deems proper to the State Government or other authority concerned for the maintenance, so far as practicable, of the previous arrangement.

64.

Provisions as to Bihar State Financial Corporation.

(1)

The Bihar State Financial Corporation established under the State Financial Corporation Act, 1951 shall, on and from the appointed day, continue to function in those areas in respect of which it was functioning immediately before that day, subject to the provisions of this section and to such directions as may, from time to time, be issued by the Central Government.

(2)

Any directions issued by the Central Government under sub-section (1) in respect of the Corporation may include a direction that the said Act, in its application to the Corporation, shall have effect subject to such exceptions and

modifications as may be specified in the direction.

(3)

Notwithstanding anything contained in sub-section (1) or sub-section (2), the Board of Directors of the Corporation may, with the previous approval of the Central Government and shall, if so required by the Central Government, convene at any time after the appointed day a meeting for the consideration of a scheme for the reconstitution or reorganisation or dissolution, as the case may be, of the Corporation, including proposals regarding the formation of new Corporation, and the transfer thereto of the assets, rights and liabilities of the existing Corporation, and if such a scheme is approved at the general meeting by a resolution passed by a majority of the shareholders present and voting, the scheme shall be submitted to the Central Government for its sanction.

(4)

If the scheme is sanctioned by the Central Government either without modifications or with modification which are approved at a general meeting, the Central Government shall certify the scheme, and upon such certification, the scheme shall, notwithstanding anything to the contrary contained in any law for the time being in force, be binding on the Corporations affected by the scheme as well as the shareholders and creditors thereof.

(5)

If the scheme is not so approved or sanctioned, the Central Government may refer the scheme to such Judge of the High Court at Patna and Jharkhand as may be nominated in this behalf by the Chief Justice thereof, and the decision of the Judge in regard to the scheme shall be final and shall be binding on the Corporations affected by the scheme as well as the shareholders and creditors thereof.

(6)

Nothing in the preceding provisions of this section shall be construed as preventing the Government of the States of Bihar and Jharkhand from constituting at any time on or after the appointed day, a State Financial Corporation for that State under the State Financial Corporations Act, 1951.

65.

Provisions as to certain companies.

(1)

Notwithstanding anything contained in the foregoing provisions of this Part, each of the companies specified in the Ninth Schedule to this Act shall, on and from the appointed day until otherwise provided for in any law, or in any agreement among the successor States, or in any direction issued by the Central Government, continue to function in the areas in which it was functioning immediately before that day; and the Central Government may, from time to time, issue such directions in relation to such functioning as it may deem fit, notwithstanding anything to the contrary contained in the Companies Act, 1956, or in any other law.

(2)

Any directions issued under sub-section (1) in respect of a company referred to in that sub-section, may include direction

(a)

regarding the division of the interests and shares of existing State of Bihar in the company among the successor States;

(b)

requiring the reconstitution of the Board of Directors of the company so as to give adequate representation to both, the successor States.

66.

General provision as to statutory corporations.

(1)

Save as otherwise expressly provided by the foregoing provisions of this Part, where any body corporate constituted under a Central Act, State Act or Provincial Act for the existing State of Bihar or any Part thereof has, by virtue of provisions of Part II of this Act, become an inter-State body corporate, then, the body corporate shall, on and from the appointed day, continue to function and operate in those areas in respect of which it was functioning and operating immediately before that day, subject to such directions as may from time to time be issued by the Central Government, until other provision is made by law in respect of the said body corporate.

(2)

Any directions issued by the Central Government under sub-section (1) in respect of any such body corporate shall

include a direction that any law by which the said body corporate is governed shall, in its application to that body corporate, have effect subject to such exceptions and modifications as may be specified in the direction.

67.

Temporary provisions as to continuance of certain existing road transport permits.

(1)

Notwithstanding anything contained in section Sg of the Motor Vehicles Act, 1988, a permit granted by the State Transport Authority of the existing State of Bihar or any Regional Transport Authority in that State shall, if such permit was, immediately before the appointed day, valid and effective in any area in the transferred territory, be deemed to continue to be valid and effective in that area after that day subject to the provisions of that Act as for the time being in force in that area; and it shall not be necessary for any such permit to be countersigned by the State Transport Authority of Jharkhand or any Regional Transport Authority therein for the purpose of validating it for use in such area Provided that the Central Government may, after consultation with the successor State Government or Government concerned add to, amend or vary the conditions attached to the permit by the Authority by which the permit was granted.

(2)

No tolls, entrance fees or other charges of a like nature shall be levied after the appointed day in respect of any transport vehicle for its operations in any of the successor States under any such permit, if such vehicle was, immediately before that day, exempt from the payment of any such toll, entrance fees or other charges for its operations in the transferred territory :

Provided that the Central Government may, after consultation with the State Government or Government concerned, authorise the levy of any such toll, entrance Fees or other charges as the case may be.

68.

Special provisions relating to retrenchment compensation In certain cases.

- Where on account of the re-organisation of the existing State of Bihar under this Act, any body corporate constituted under a Central Act, State Act or Provincial Act, any co-operative society registered under any law relating to co-operative societies or any commercial or industrial undertaking of that State is re-constituted or re-organised in any manner whatsoever or is amalgamated with any other body corporate, co-operative society or undertaking or is dissolved, and in consequence of such re-constitution, re-organisation, amalgamation or dissolution, any workman employed by such body corporate or in any such co-operative society or undertaking, is transferred to, or re-employed by any other body corporate, or in any other cooperative society or undertaking, then notwithstanding anything contained in section 25F, 25FF or 25FFF of the Industrial Disputes Act, 1947, such transfer or re-employment shall not entitle him to any compensation under that section

Provided that

(a)

the terms and conditions of service applicable to the workman after such transfer or re-employment are not less favourable to the workman than those applicable to him immediately before the transfer or re-employment;

(b)

the employer in relation to the body corporate, the co-operative society or the undertaking where the workman transferred or re-employed is, by agreement or other wise, legally liable to pay to the workman, in the event of his retrenchment, compensations under section 25F, 25FF or 25FFF of the Industrial Disputes Act, 1947 on the basis that his service has been continuous and has not been interrupted by the transfer or re-employment.

69.

Special provision as to income-tax.

- Where the assets, rights and liabilities of any body corporate carrying on business are, under the provisions of this Part, transferred to any other bodies corporate which after the transfer carry on the same business, the losses or profits or gains sustained by the body corporate first mentioned which, but for such transfer, would have been allowed to be carried forward and set off in accordance with the provisions of Chapter VI of the Income-tax Act, 1961 shall be apportioned amongst the transferee bodies corporate in accordance with the rules to be made by the Central Government in this behalf and, upon such apportionment, the share of loss allotted to each transferee body corporate shall be dealt with in accordance with the provisions of Chapter VI of the said Act, as if the transferee body corporate had itself sustained such loss in a business carried on by it in the years in which these losses were sustained.

70.

Continuance of facilities in certain State institutions.

(1)

The Government of State of Bihar or Jharkhand as the case may be, shall, in respect of the institutions specified in the Tenth Schedule to this Act, located in that State, continue to provide facilities to the people of the other State which shall not, in any respect, be less favourable to such people than what were being provided to them before the appointed day, for such period and upon such terms and conditions as may be agreed upon between the two State Governments before the 1st day of December, 2001 or if no agreement is reached by the said date as may be fixed by order of the Central Government.

(2)

The Central Government may, at any time before the 1st day of December, 2001 by notification in the Official Gazette, specify in the Tenth Schedule any other institution existing on the appointed day in the States of Bihar and Jharkhand and on the issue of such notification, the Schedule shall be deemed to be amended by the inclusion of the said institution therein.

Part VIII ? Provision As To Services

71.

Provisions relating to All-India Services.

(1)

In this section, the expression "State cadre"-

(a)

in relation to the Indian Administrative Service has the meaning assigned to it in the Indian Administrative Service (Cadre) Rules, 1954;

(b)

in relation to the Indian Police Service, as the meaning assigned to it in the Indian Police Service (Cadre) Rules, 1954; and

(c)

in relation to the Indian Forest Service, has the meaning assigned to it in the Indian Forest Service (Cadre) Rules, 1966.

(2)

In place of the cadres of the Indian Administrative Service, Indian Police Service and Indian Forest Service for the existing State of Bihar, there shall, on and from the appointed day, be two separate cadres, one for the State of Bihar and the other for the State of Jharkhand in respect of each of these services.

(3)

The initial strength and composition of the State cadres referred to in sub-section (2) shall be such as the Central Government may, by order, determine before the appointed day.

(4)

The members of each of the said service borne on the Bihar cadre thereof immediately before the appointed day shall be allocated to the State cadres of the same service constituted under sub-section (2) in such manner and with effect from such date or dates as the Central Government may, by order, specify.

(5)

Nothing in this section shall be deemed to affect the operation, on or after the appointed day, of the All India Service Act, 1951, or the rules made (hereunder).

72.

Provisions relating to services in Bihar and Jharkhand.

(1)

Every person who immediately before the appointed day is serving in connection with the affairs of the existing State of Bihar shall, on and from that day provisionally continue to serve in connection with the affairs of the State of Bihar unless he is required, by general or special order of the Central Government to serve provisionally in connection with the affairs of the State of Jharkhand:

Provided that no direction shall be issued under this section after the expiry of a period of one year from the appointed day.

(2)

As soon as may be after the appointed day, the Central Government shall, by, general or special order, determine the

successor State to which every person referred to in sub-section (1) shall be finally allotted for service and the date with effect from which such allotment shall take effect or be deemed to have taken effect.

(3)

Every person who is finally allotted under the provisions of sub-section (2) to a successor State shall, if he is not already serving therein be made available for serving in the successor State from such date as may be agreed upon between the Governments concerned or in default of such agreement, as may be determined by the Central Government.

73.

Other provisions relating to services.

(1)

Nothing in section 2 shall be deemed to affect on or after the appointed day the operation of the provisions of Chapter I of Part XVI of the Constitution in relation to determination of the conditions of service of persons serving in connection with the affairs of the Union or any State :

Provided that the conditions of service applicable immediately before the appointed day in the case of any person deemed to have been allocated to the State of Bihar or to the State of Jharkhand under section 72 shall not be varied to his disadvantage except with the previous approval of the Central Government.

(2)

All services prior to the appointed day rendered by a person

(a)

if he is deemed to have been allocated to any State under section 72, shall be deemed to have been rendered in connection with the affairs of that State;

(b)

if he is deemed to have been allocated to the Union in connection with the administration of the Jharkhand shall be deemed to have rendered in connection with the affairs of the Union, for the purposes of the rules regulating his conditions of service.

(3)

The provisions of section 72, shall not apply in relation to members of any All India Service.

74.

Provisions as to continuance of officers In same post.

- Every person who, immediately before the appointed day is holding or discharging the duties of any post or office in connection with the affairs of the existing State of Bihar in any area which on that day falls within any of the successor States shall continue to hold the same post or office in that successor State, and shall be deemed, on and from that day, to have been duly appointed to the post or office by the Government of, or any other appropriate authority in, that successor State :

Provided that nothing in this section shall be deemed to prevent a competent authority, on and from the appointed day, from passing in relation to such person any order affecting the continuance in such post or office.

75.

Advisory Committees.

- The Central Government may by order establish one or more Advisory Committees for the purpose of assisting it in regard to

(a)

the discharge of any of its functions under this Part; and

(b)

the ensuring of fair and equitable treatment to all persons affected by the provisions of this Part and the proper consideration of any representations made by such persons.

76.

Power of Central Government to give directions.

- The Central Government may give such directions to the State Government of Bihar and the State Government of Jharkhand as may appear to it to be necessary for the purpose of giving effect to the foregoing provisions of this Part and the State Government shall comply with such directions.

77.

Provisions as to State Public Service Commission.

- (1) The Public Service Commission for the existing State of Bihar shall, on and from the appointed day, be the Public Service Commission for the State of Bihar.

(2)

The persons holding office immediately before the appointed day as Chairman or other member of the Public Service Commission for the existing State of Bihar shall, as from the appointed day, be the Chairman or, as the case may be, the other member of the Public Service Commission for the State of Bihar.

(3)

Every person who becomes Chairman or other member of the Public Service Commission for the State of Bihar on the appointed day under sub-section (2), shall

(a)

be entitled to receive from the Government of the State of Bihar conditions of service not less favourable than those to which he was entitled under the provisions applicable to him;

(b)

subject to the proviso to clause (2) of article 316, hold office or continue to hold office until the expiration of his term of office as determined under the provisions applicable to him immediately before the appointed day.

(4)

The report of the Bihar Public Service Commission as to the work done by the Commission in respect of any period prior to the appointed day shall be presented under clause (2) of article 323 to the Governors of the States of Bihar and Jharkhand, and the Governor of the State of Bihar shall, on receipt of such report, cause a copy thereof together with a memorandum explaining as far as possible, as respects the cases, if any, where the advice of the Commission was not accepted, the reasons for such non-acceptance to be laid before the Legislature of the State of Bihar and it shall not be necessary to cause such report or any such memorandum to be laid before the Legislative Assembly of the State of Jharkhand.

Part IX ? Management And Development Of Water Resources

78.

Water Resources Development and Its Management.

(1)

Notwithstanding anything contained in this Act but subject to the provisions of section 79, all rights and liabilities of the existing State of Bihar in relation to water resource projects in relation to

(i)

Ganga and its tributaries; and

(ii)

Sone and its tributaries, shall, on the appointed day be the rights and liabilities of the successor States in such proportion as may be fixed and subject to such adjustments as may be made, by agreement entered into by the said States after consultation with the Central Government, or if no such agreement is entered into within two years of the appointed day, then the Central Government may, by order, determine within one year having regard to the purposes of the project :

Provided that the order so made by the Central Government may be varied by any subsequent agreement entered into by the successor States after consultation with the Central Government.

(2)

An agreement or order referred to in sub-section (1) shall, where an extension or further development of any of the projects referred to in that sub-section after the appointed day is undertaken, be the rights and liabilities of the successor States in relation to such extension or further development.

(3)

The rights and liabilities referred to in sub-sections (1) and (2) shall include,

(a)

the right to receive and utilise the water available for distribution as a result of the projects; and

(b)

the right to receive and utilise the power generated as a result of the projects, but shall not include the rights and liabilities under any contract entered into before the appointed day by the Government of the existing State of Bihar with any person or authority other than Government.

79.

Constitution and functions of Management Board.

(1)

The Central Government shall constitute a Board to be called the Ganga and Sone Management Board (hereinafter referred to as the Board) for administration, construction, maintenance and operation of projects referred to in sub-section (1) of section 78 for any or for a combination of following purposes, namely :

(i)

Irrigation;

(ii)

Rural and Urban Water Supply:

(iii)

Hydro Power Generation;

(iv)

Navigation;

(v)

Industries; and

(vi)

for any other purpose which the Central Government may, by notification in the Official Gazette, specify.

(2)

The Board shall consist of

(a)

a whole-time Chairman and two whole-time members to be appointed by the Central Government;

(b)

a representative each of the Government of the States of Uttar Pradesh, Bihar, Jharkhand and Madhya Pradesh to be nominated by the respective Governments;

(c)

two representatives of the Central Government to be nominated by that Government.

(3)

The functions of the Board shall include-

(a)

the regulation of supply of water from the projects referred to in sub-section (1) of section 78 to States of Uttar Pradesh, Bihar, Jharkhand and Madhya Pradesh having regard to

(i)

any agreement entered into or arrangement made covering the Governments of existing State of Bihar and the States of Uttar Pradesh, Bihar, Jharkhand and Madhya Pradesh, and

(ii)

the agreement or the order referred to in sub-section (2) of section 78;

(b)

the regulation of supply of power generated at the projects referred to in sub-section (1) of section 78, to any Electricity Board or other authority incharge of the distribution of power having regard to

(i)

any agreement entered into or arrangement made covering the Governments of existing State of Bihar and the States of Uttar Pradesh, Bihar, Jharkhand and Madhya Pradesh, and

(ii)

the agreement or the order referred to in sub-section (2) of section 78:

(c)

the examination of the requirement of funds for various projects in terms of the programme laid down for such projects and to advise the apportionment of the expenditure to the Participating States keeping in view the agreement on the sharing of costs;

(d)

to decide the withdrawal of water from the reservoirs during the construction period for irrigation and power purposes

with a view to securing better use of available water;

(e)

the responsibility of devising programme of resettlement for persons displaced as a result of Irrigation Projects;

(f)

construction of such of the remaining or new works connected with the development of the water resource project relating to the rivers or their tributaries as the Central Government may specify by notification in the Official Gazette; and

(g)

such other functions as the Central Government may after consultation with the Governments of the States of Uttar Pradesh, Bihar, Jharkhand and Madhya Pradesh entrust to it.

80.

Staff of the Management Board.

(1)

The Board may employ such staff, as it may consider necessary for the efficient discharge of its functions under this Act: Provided that every person who immediately before the constitution of the said Board was engaged in the construction, maintenance or operation of the works relating to the projects referred to in sub-section (1) of section 78 shall continue to be so employed under the Board in connection with the said works on the same terms and conditions of the service as were applicable to him before such constitution until the Central Government by order, directs otherwise:

Provided further that the said Board may at any time in consultation with the State Government or the Electricity Board concerned and with prior approval of the Central Government retain any such person for service under that State Government or Board.

(2)

The Government of the States of Uttar Pradesh, Bihar, Jharkhand and Madhya Pradesh shall at all times provide the necessary funds to the Board to meet all expenses (including the salaries and allowances of the staff) required for the discharge of its functions and such amounts shall be apportioned among the States concerned in such proportion as the Central Government may having regard to the benefits to each of the said States specify,

(3)

The Board shall be under the control of the Central Government and shall comply with such directions, as may from time to time, be given to it by that Government.

(4)

The Board may, with the approval of the Central Government delegate such of its powers, functions and duties as it may deem fit to the Chairman of the said Board or to any officer subordinate to the Board.

(5)

The Central Government may, for the purpose of enabling the Board to function efficiently, issue such directions to the State Governments concerned, or any other authority, and the State Governments or the other authority shall comply with such directions.

81.

Jurisdiction of the Board.

- The Board shall, ordinarily exercise jurisdiction in regard to any of the projects referred to in sub-section (1) of section 78 over headwork (barrages, dams, reservoir, regulating construction), Part of canal network and transmission lines necessary to deliver water or power to the States concerned.

(2)

If any question arises as to whether the Board has jurisdiction under sub-section (1) over any project referred thereto, the same shall be referred to the Central Government for decision thereon.

82.

Power to make regulations.

- The Board may, with the prior approval of the Central Government by notification in the Official Gazette, make regulations consistent with this Act and orders made thereunder, to provide for

(a)

regulating the time and place of meetings of the Board and the procedure to be followed for the transaction of business at such meetings;

(b)

delegation of powers and duties to the Chairman or any officer of the Board;

(c)

the appointment and regulation of the conditions of service of the officers and other staff of the Board; and

(d)

any other matter for which regulations are considered necessary by the Board.

Part X ? Legal And Miscellaneous Provisions

83.

Amendment of Act

37 of 1956

.

- On and from the appointed day, in section 15 of the States Reorganisation Act, 1956, in clause (c), for the word "Bihar" the words "Bihar and Jharkhand" shall be substituted.

84.

Territorial extent of laws.

- The provisions of Part II of this Act shall not be deemed to have effected any change in the territories to which any law in force immediately before the appointed day extends or applies, and territorial references in any such law to the State of Bihar shall, until otherwise provided by a competent Legislature or other competent authority be construed as meaning the territories within the existing State of Bihar before the appointed day.

85.

Power to adapt laws.

- For the purpose of facilitating the application in relation to the State of Bihar or Jharkhand of any law made before the appointed day, the appropriate Government may, before the expiration of two years from that day, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent Legislature or other competent authority.

Explanation. - In this section the expression "appropriate Government" means as respects any law relating to a matter enunciated in the Union List, the Central Government, and as respects any other law in its application to a State, the State Government.

86.

Power to construe laws.

- Notwithstanding that no provision or insufficient provision has been made under section 85 for the adaptation of a law made before the appointed day, any Court, tribunal or authority, required or empowered to enforce such law may, for the purpose of facilitating its application in relation to the State of Bihar or Jharkhand, construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the Court, Tribunal or Authority.

87.

Power to name authorities etc. for exercising statutory functions.

- The Government of the State of Jharkhand, as respects the transferred territory may, by notification in the Official Gazette, specify the authority, officer or person who, on or after the appointed day, shall be competent to exercise such functions exercisable under any law in force on that day as may be mentioned in that notification and such law shall have effect accordingly.

88.

Legal proceedings.

- Where immediately before the appointed day, the existing State of Bihar is a Party to any legal proceeding with respect to any property, rights or liabilities subject to apportionment between the States of Bihar and Jharkhand under this Act, the State of Bihar or Jharkhand which succeeds to, or acquires a share in, that property or those rights or liabilities by virtue of any provision of this Act shall be deemed to be substituted for the existing State of Bihar or added as a Party to those proceedings, and the proceedings may continue accordingly.

89.

Transfer of pending proceedings.

(1)

Every proceeding pending immediately before the appointed day before a Court (other than the High Court), tribunal, authority or officer in any area which on that day falls within the State of Bihar shall, if it is a proceeding relating exclusively to the territory, which as from that day is the territory of Jharkhand State, stand transferred to the corresponding Court, Tribunal, authority or officer of that State.

(2)

If any question arises as to whether any proceeding should stand transferred under sub-section (1), it shall be referred to the High Court at Patna and the decision of that High Court shall be final.

(3)

In this section

(a)

"proceeding" includes any suit, case or appeal; and

(b)

"corresponding court, tribunal, authority or officer" in the State of Jharkhand means-

(i)

the court, tribunal, authority or officer in which, or before whom, the proceeding would have laid if it had been instituted after the appointed day; or

(ii)

in case of doubt, such court, tribunal, authority, or officer in that State, as may be determined after the appointed day by the Government of that State or the Central Government, as the case may be, or before the appointed day by the Government of the existing State of Bihar to be the corresponding Court, Tribunal, authority or officer.

90.

Right of Pleaders to practise in certain cases.

- Any person who, immediately before the appointed day, is enrolled as a pleader entitled to practise in any subordinate Court in the existing State of Bihar shall, for a period of one year from that day, continue to be entitled to practise in those courts, notwithstanding that the whole or any Part of the territories within the jurisdiction of those courts has been transferred to the State of Jharkhand.

91.

Effect of provisions of the Act inconsistent with other laws.

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law.

92.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the President may, by order, do anything not inconsistent with such provisions which appears to him to be necessary or expedient for the purpose of removing the difficulty :

Provided that no such order shall be made after the expiry of a period of three years from the appointed day.

(2)

Every order made under this section shall be laid before each House of Parliament.

The First Schedule

(See section 8)

(i)

Of the seven sitting members whose term of office will expire on 9th April, 2002, namely, [Obaidullah Khan]

[Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).]

, [Ven Dhamma Viriyo]

[Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).]

, Shri Nagendra Nath Ojha, Shri Prem Chand Gupta, Shri Ranjan Prasad Yadav, Shri [Shatrughan Prasad Sinha]

[Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).]

and Shri Ram Deo Bhandari, [Obaidullah Khan]

[Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).]

and [Ven Dhamma Viriyo]

[Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).]

, shall be deemed to have been elected to fill two of the seats allotted to the State of Jharkhand and the other five sitting members shall be deemed to have been elected to fill five of the seats allotted to the State of Bihar.

(ii)

Of the seven sitting members whose term of office will expire on 7th July, 2004, namely, Shri Shibu Soren, Shri Gaya Singh, Shri Parmeshwar Kumar Agrawala, Shri Anil Kumar, Dr R.K. Yadav Ravi, Shri Kapil Sibal, Smt. Saroj Dubey, Shri Shibu Soren and Shri Parmeshwar Kumar Agrawala shall be deemed to have been elected to fill two of the seats allotted to the State of Jharkhand and the other five sitting members shall be deemed to have been elected to fill five of the seats allotted to the State of Bihar.

(iii)

Of the eight sitting members whose term of office will expire on 2nd April, 2006, namely, Shri S.S. Ahluwalia, Smt. Kum Kum Rai, Shri Faguni Ram, Shri Mahendra Prasad, Shri Ravi Shankar Prasad, Shri Rajiv Ranjan Singh, Shri Ram Kumar Anand and Shri Vijay Singh Yadav, Shri S.S. Ahluwalia and Shri Ram Kumar Anand, shall be deemed to have been elected to fill two of the seats allotted to the State of Jharkhand and the other six sitting members shall be deemed to have been elected to fill six of the seats allotted to the State of Bihar.

The Second Schedule

(See section 10)

In the Delimitation of Parliamentary and Assembly Constituencies Order, 1976,-

(i)

in Schedule I-

(a)

for serial number 3 and the entries relating thereto, the following shall be substituted, namely:-

1

2

3

4

5

6

7

3 Bihar

53

7

5

40

7

..

(b)

after serial number 21, the following serial number and entries shall be inserted, namely:-

1

2

3

4

5

6

7

21A

Jharkhand

..

..

14

1

5..

(ii)

in Schedule II,-

(a)

for serial number 3 and the entries relating thereto, the following shall be substituted, namely:-

1

2

3

4

5

6

7

3 Bihar

318

45

29

243

39

..

(b)

after serial number 21, the following serial number and entries shall be inserted, namely:-

1

2

3

4

5

6

7

21A

Jharkhand

..

..

81

9

28

(iii)

in Schedule V,-

(a)

in Part A-Parliamentary Constituencies,-

(A)

serial numbers 26 to 28, 44 to 54 and the entries relating thereto shall be omitted;

(B)

against serial number 29,-

(1)

the entry "158 Deoghar (SC)" shall be omitted;

(2)

after entry "176-Kataria", the entry "177-Chakai" shall be inserted;

(C)

against serial number 30, the entry "164-Mahagama" shall be omitted;

(D)

against serial number 30, for the figures and words ["171-Sultanganj" and "173-Dhuraiya" the figures, words and letters "171-Sultanganj (SC)" and "173-Dhuraiya (SC)" shall be substituted]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

;

(E)
against serial number 40, after entry "241-Goh", the entry "251-Imamganj (SC)" shall be inserted;

(F)
against serial number 42, for entry "256-Atri", the entry "255-Fatehpur (SC), 256- Atri" shall be substituted;

(G)
against serial number 43, after entry "253-Bodhgaya (SC)", the entry "254-Barachatti (SC)" shall be inserted;

(b)
in Part B-Assembly Constituency, serial numbers 147 to 164, 262 to 324 and the entries relating thereto shall be omitted.

(iv)
after Schedule XXII, the following Schedule shall be inserted, namely:-

"Schedule XXIIA

Jharkhand

Part A ? Parliamentary Constituencies

Table

Serial No.

Name and extent of constituencies

1.

Rajmahal(ST). - 1-Rajmahal,[2-Borio (ST)]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

,

3.

-Barhait (ST), 4-Litipara (ST), 5-Pakaur, 6-Maheshpur (ST).

2.

Dumka(ST). - 7-Sikaripara (ST), 8-Nala, 9-Jamtara,

14.

-Sarath, 10-Dumka (ST), 11- Jama (ST).

3.

Godda.- 13-Madhupur, 15-Deoghar (SC), 12-Jarmundi,

16.

-Poreyahat, 17-Godda,18-Mahagama.

4.

Chatra.- 27-Chatra (SC), 26-Simaria (SC), 74-Latehar (SC) , 75-Panki, 73-Manika (ST).

5.

Kodarma.- 19-Kodarma, 20-Barkatha, 28-Dhanwar,

29.

-Bagodar, 30-Jamua (SC), 31-Gandey.

6.

Giridih.- 32-Giridih, 33-Dumri, 34-Gomia, 35-Bermo,

42.

- Tundi, 43-Baghmara.

7.

Dhanbad.- 36-Bokaro, 38-Sindri, 39-Nirsa, 40-Dhanbad,

41.

-Jharia, 37-Chandankiyari (SC).

8.

Ranchi.- 50-Ichagarh, 61-Silli, 62-Khijri (ST),

63.

-Ranchi; 64-Hatia, 65-Kanke (SC).

9.
Jamshedpur.-[44-Bahragora]
[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]
, 45-Ghatsila (ST),
46.
-Potka (ST), 47-Jugsalai (SC), 48-Jamshedpur-East,
49.
-Jamshedpur-West.
10.
Singhbhum(ST). - 51-Seraikela (ST), 52-Chaibasa (ST),
53.
-Majhgaon (ST), 54-Jaganathpur (ST), 55-Manoharpur (ST),[56-Chakradharpur (ST)]
[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]
.

11.
Khunti(ST). - 57-Kharsawar (ST), 58-Tamar (ST),
59.
-Torpa (ST), 60-Khunti (ST), 71-Kolebira (ST), 70- Simdega
(ST) .
12.
Lohardaga(ST). - 66-Mandar (ST), 67-Sisai (ST),
68.
-Gumla (ST), 69-Bishunpur (ST),[72-Lohardaga (ST)]
[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]
.

13.
Palamau(SC). - 76-Daltonganj, 80-Garhwa,
81.
-Bhawanathpur, 77-Bishrampur, 78-Chhatarpur (SC),
79.
-Hussainabad.
14.
Hazaribagh.- 21-Barhi, 22-Barkagaon, 23-Ramgarh,
24.
-Mandu, 25-Hazaribagh.

Part B ? . - Assembly Constituencies

Table

Serial No.

Name and extent of constituencies

Sahebganj District

1.
Rajmahal.- Rajmahal and Sahebganj Police Stations in
Rajmahal Sub-division.
2.
Borio (ST).- Borio and Taljhari Police Stations in
Rajmahal sub-division; and Boarjor Police Station (excluding
G.Ps. Rajabhita, Kero, Kairasol, Bara Telo and Barapipra) in
Godda sub-division.
3.
Barhait (ST).- Barhait and Ranga Police Stations in

Rajmahal sub-division; and Sundarpahari Police Station and G.Ps. Rajabhita, Kera, Kairasol, Bara Telo and Barapipra in Boarijar Police Station in Godda sub-division.

Pakaur District

4.

Litipara (ST).- Litipara, Amrapara and Hiranpur Police Stations in Pakaur sub-division; and Gopikandar Police Station in Dumka Sadar sub-division.

5.

Pakaur.- Pakaur Police Station in Pakaur sub-division; and Barharwa Police Station in Rajmahal sub-division.

6.

Mahaeshpur (ST).- Maheshpur and Pakuria Police station in Pakaur sub-division.

Dumka District

7.

Sikaripara (ST).- Sikaripara, Raneshwar and kathikund Police Stations in Dumka Sadar sub-division.

8.

Nala.- Nala and Kundahit Police Stations in Jamtara sub-division.

9.

Jamtara.- Jamtara Police Stations (excluding G.Ps. Karmatanr, Sahajpur, Pindari, Lakhanpur, Rataniya, Rampurbhitra and Kajra) and Narayanpur Police Station in Jamtara sub-division.

10.

Dumka (ST).- Dumka Town, Dumka Mufassil and Masalia Police Stations in Dumka Sadar sub-division.

11.

Jama (ST).- Jama and Ramgarh Police Stations in Dumka Sadar sub-division.

12.

Jarmundi.- Jarmundi Police Station in Dumka Sadar sub-division; and Sarawan Police Station in Deoghar sub-division.

Deoghar District

13.

Madhupur.- Madhupur and Karon Police Stations and G.Ps. Kusmil, Chanddih, Pathra and Basbariya in Jasidih Police Station in Deoghar sub-division.

14.

Sarath.- Sarath and Palojori Police Stations in Deoghar sub-division; and G.Ps. Karmatanr, Sahajpur, Pindari, Lakhanpur, Rataniya, Rampurbhitra and Kajra in Jamtara Police Station in Jamtara sub-division.

15.

Deoghar (SC).- Deoghar Town and Mohanpur Police Stations and Jasidih Police Station (excluding G.Ps. Kusmil, Chanddih, Pathra and Basbariya) in Deoghar sub-division.

Godda District

16.

Poreyahat.- Poreyahat Police Station and G.Ps.

Burhikura, Dammajhilua, Sandmara, Nonbatta, Makhni, Pathra nad Pungsiya in Godda Police Station in Godda sub-division; and Saraiyahat Police Station in Dumka Sadar sub-division.

17.

Godda.- Godda Police Station (excluding G.Ps.

Burhikura, dammajhilua, Sandmara, Nonbatta, Makhni, Pathra and Pungsiya) and Pathargama Police Station in Godda sub-division.

18.

Mahagama.- Mahagama and Meherma Police Stations in Godda sub-division.

Kodarma District

19.

Kodarma.- Kodarma and[Satgawan]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

Police Stations

in Kodarma sub-division.

Hazaribagh District

20.

Barkatha.- Barkatha and Jainagar Police Stations in Kodarma sub-division;[* * *]

[The words 'and Ichak Police Stations in Kodarma sub-division' omitted, by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

; and Ichak Police Station in

Hazaribagh Sadar sub-division.

21.

Barhi.- Barhi Police Station in Hazaribagh Sadar sub-division; and Chauparan Police Station in Kodarma sub-division.

22.

Barkagaon.- Barakgaon Police Station and G.Ps. Terpa, Patratu, Koto, Palani,[Haphua]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

,[Hariharpur]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

, Gegda, Deoria,

Bargama, Pali, Salgo, Sanki, Jabo, Chaingara, Chikor, Lapanga, Ghutua, Barkakana and Sidhwar-Kalan in Ramgarh Police Station in Hazaribagh Sadar sub-division.

23.

Ramgarh.- Ramgarh Police Station (excluding G.Ps.

Terpa, Patratu, Koto, Palani,[Haphua]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

,[Hariharpur]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

, Gegda,

Deoria, Bargama, Pali, Salgo, Sanki, Jabo,[Chaingara]

[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

,

Chikor, Lapanga, Ghutua, Barkakana and Sidhwar-Kalan) and Gola Police Station in Hazaribagh Sadar sub-division.

24.

Mandu.- Mandu and Bishungarh Police Stations in Hazaribagh Sadar sub-division.

25.

Hazaribagh.- Hazaribagh Police Station in Hazaribagh Sadar sub-division.

Chatra District

26.

Simaria (SC).- Simaria, Itkhori and Tandwa Police Stations in Chatra sub-division.

27.

Chatra (SC).- Chatra, Pratappur and Hunterganj Police Stations in Chatra sub-division.

Giridih District

28.

Dhanwar.- Dhanwar and Gawan Police Stations in Giridih Sadar sub-division.

29.

Bagodar.- Bagodar and Birni Police Stations in Giridih Sadar sub-division.

30.

Jamua (SC).- Jamua and Deori Police Stations in Giridih Sadar sub-division.

31.

Gandey.- Gandey and Bengabad Police Stations and G.Ps. Leda, Semaria, Badgunda, Palmo, Sathibad, Senadoni, Dhanaidih, Guro, Jitpur, Telodih, Ranidih and Karharbari in Giridih Mufassil Police Station in Giridih Sadar sub-division.

32.

Giridih.- Giridih Town Police Station and Giridih Mufassil Police Station (excluding G.Ps. Leda, Semaria, Badgunda, Palmo, Sathibad Senadoni, Dhanaidih, Guro, Jitpur, Telodih, Ranidih and Karharbari) and Pirtanr Police Station in Giridih Sadar sub-division.

33.

Dumri.- Dumri Police Station in Giridih Sadar sub-division; and Nawadih Police Station in Bermo sub-division.

Bokaro District

34.

Gomia.- Gomia Police Station and Petarbar Police Station (excluding G.Ps. Champi, Rohar, Chando, Pichhri, Angwali and Chalkari) in Bermo sub-division.

35.

Bermo.- Jaridih and Bermo Police Stations and G.Ps. Champi, Rohar, Chando, Pichhri, Angwali and Chalkari in Petarbar Police Station in Bermo sub-division.

36.

Bokaro.- Chas Police Station (excluding G.Ps, Bijulia, Alkusa, Buribinor, Khamarbendi, Dudhigajar, Kura

Dabartupara, Jaitara, Pundru and Sardaha) in Baghmara sub-division.

37.

Chandankiyari (SC).- Chandankiyari Police Station and G.Ps. Bijulia, Alkusa, Buribinor, Khamrbendi, Dhundhigajar, Kura, Dabartupara, Jaitara, Pundu and Sardaha in Chas Police Station in Baghmara sub-division.

Dhanbad District

38.

Sindri.- Sindri, Baliapur and Gobindpur Police Station in Dhanbad Sadar sub-division.

39.

Nirsa.- Nirsa and Chirkunda Police Stations in Dhanbad Sadar sub-division.

40.

Dhanbad.- Dhandad, Putki and Kenduadih Police Stations in Dhanbad Sadar sub-division.

41.

Jharia.- Jharia and Jorapokhar Police Stations in Dhanbad Sadar sub-division.

42.

Tundi.- Tundi Police Station in Dhanbad Sadar sub-division; Topchanchi Police Station and G.Ps. Dharkiro, Daludih, Rajganj, Bagdaha, Dhawachita, Nagar kalan and Ramkanalichandur in Katras Police Station in Baghmara sub-division.

43.

Baghmara.- Baghmara Police Station and Katras Kalan Police (excluding G.Ps. Dharkiro, Daludih, Rajganj, Bagdaha, Dhawachita, Nagri Kalan and Ramkanalichandur) in Baghmara sub-division; and Jogta Police Station in Dhanbad Sadar sub-division.

(East) Singhbhum District

44.

Baharagora.- Baharagora and Chakulia Police Stations in Dhalbhum sub-division.

45.

Ghatsila (ST).- Ghatsila Police Station,[Musabani] [Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).] Police Station (excluding G.Ps. Palasbani, Asta Koyali, Nunia, Kumarasoi, Barakanjiya, Bomaro Bangoriya and Damudih) in Dhalbhum sub-division.

46.

Potka (ST).- Potka Police Station, G.Ps. Palasbani, Asta Koyali, Nunia, Kumarasol, Barakanjiya, Bomaro Bangoriya and Damudih in 1 [Musabani] Police Station, Bagbera town and G.Ps. Karadih?Purihasa, Haragarghutu, Bagbera and village

1167.

-Kitadih in Jugsalai Police Station in Dhalbhum sub-division.

47.

Jugsalai (SC).- Jugsalai Police Station (excluding Bagbera town and G.Ps. Karandih-Purihasa, Hargarghutu, Bagbera and village 1167-Kitadih) Golmuri and Patamda Police Station in Dhalbhum sub-division.

48.

Jamshedpur East.- Census wards 20 and 23 to 40 in Jamshedpur Notified Area Committee in Dhalbhum sub-division.

49.

Jamshedpur West.- Jamshedpur Notified Area Committee (excluding census wards 20 and 23 to 40) in Dhalbhum sub-division.

(West) Singhbhum District

50.

Ichagarh.- Ichagarh, Chandil and Nimdih Police Stations in Seraikella sub-division.

51.

Seraikella (ST).- Seraikella municipality and G.Ps. Govindpur, Pandra, Manik Bazar, Tangani, Pathanmara, Jordiha, Gurgudia and Badakakda in Seraikella Police Station, Rajnagar Police Station (excluding village 98-Dighi) and Adityapur Police Station in Seraikella sub-division.

52.

Chaibasa (ST).- Chaibasa Sadar and Jhinkpani Police Stations and Chaibasa Mufassil Police Station (excluding G.Ps. Bhoya, Keadchalam, Domra-Parnia, Lota, Thakuragutu, Dopai-Gamhariya, Sarda, Matkamhatu, Khuntpani, Chiru and Rajabasa) in Chaibasa Sadar sub-division.

53.

Majhgaon (ST).- Majhgaon and Manjhari Police Stations in Chaibasa Sadar sub-division.

54.

Jaganathpur (ST).- Naomundi and Gua Police Stations and G.Ps. Kurtabera, Urkiya, Makaramda, Thalkobad, (Part I) and Chhotanagra (Part I) in Manoharpur Police Station in Chaibasa Sadar sub-division.

55.

Manoharpur (ST).- Manoharpur Police Station [excluding G. Ps. Kurtabera, Urkiya, Makaramda, Thalkobad (Part I) and Chhotanagra (Part I)] and G.Ps. Beralumin, Jojoda, Serengda, Orenga, Jhilrua, Goilkera, Kuira, Kadamdiha, Dalaikela, Sonua-Jorapokhar, Porahat, Sogoisai, Gudri Jarakel, Asantaliya, Dalki-Gobindpur, Bhalurangi, Harimara, Tunian Gajpur, Bandu, Poronger, Koloeda, Kulda, Bari, Lonjo, Bera Kayam, Mamail, Piring, Komrora,[Komrora-Dariyo] [Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).] , Dura-Jante and Banskata and Chakradharpur Police Station in Chaibasa Sadar sub-division.

56.

Chakradharpur (ST).- Chakradharpur Police Station (excluding G.Ps. Beralumin, Jojoda, Serengda, Orenga, Jhilrua,

Goilker, Kuira, Kadamdiha, Dalaikela, Sonua-Jorapokhar, Porahat, Sogoisai, Gudri Jarakel, Asantaliya, Dalki-Gobindpur, Bhalurangi, Harimara, Tunian Gajpur, Bandu, Poronger, Koloeda, Kulda, Bari, Lonjo, Bera Kayam, mamail, Piring, Komrora, Komrora-Dariyo, Dura-Jante and Banskata) in Chaibasa Sadar sub-division.

57.

Kharsawan (ST).- Kharsawan and Kuchai Police Stations and Seraikella Police Station (excluding Seraikella municipality and G.Ps. Govindpur, Para, Manik Bazar, Tangrani, Pathanmara, Jordiha Gurugudia and Badakakda) and village 98-Dighi in Rajnagar Police Station in Seraikella sub-division; and G.Ps. Bhoya Keadchalam, Domra-Pamia, Lota, Thakurgutu, Dopai-Gamhariya, Sarda, Matkamhatu-Khuntpani, Chiru and Rajabasa in Chaibasa Mufassil Police Station in Chaibasa Sadar sub-division.

Ranchi District

58.

Tamar (ST).- Tamar, Erki and Bundu Police Stations in Khunti sub-divisions.

59.

Torpa (ST).- Torpa and Rania Police Stations and G.Ps. Gumru, Cobindpur, Tilmi, Lapa, Jariagarh, Urikel and Hutub and Karra Police Station in Khunti sub-division; and Bano Police Station in Simdega sub-division.

60.

Khunti (ST).- Khunti and Murhu Police Stations and Karra Police Station (excluding G.Ps. Gumru, Gobindpur, Tilmi, Lapa, Jariagarh, Urikel and Hutub) in Khunti sub-division.

61.

Silli.- Silli Police Station, G.Ps. Barwadag, Tati, Jonha, Kashidih, Merha, Ambajharia and Kontatoli and Angara Police Station in Ranchi Sadar sub-division; and Sonahatu Police Station in Khunti sub-division.

62.

Khijri (ST).- Ormanjhi,[Namkum]
[Substituted by Notification No. G.S.R. 675(E) (w. e. f. 19-8-2003).]
and Hatia Police
Stations and Angara Police Station (excluding G.Ps. Barwadag, Tati, Jonha, Kashidih

63.

Ranchi.- Ranchi municipality in Ranchi Kotwali Police Station in Ranchi Sadar sub-division.

64.

Hatia.- Jaganathpur, Ratu and Doranda Police Stations and Ranchi Kotwali Police Station (excluding Ranchi municipality) in Ranchi Sadar sub-division.

65.

Kanke (SC).- Kanke, Ranchi Sadar, Burmu and Khelari Police Stations in Ranchi Sadar sub-division.

66.

Mandar (ST).- Bero, Mandar and Lapung Police Stations, in Ranchi Sadar sub-division.
Gumla District

67.

Sisai (ST).- Sisai, Kamdara and Basia Police Stations in Gumla sub-division.

68.

Gumla (ST).- Gumla Municipality, G.Ps. Hurhuria, Ghatagaon, Asani, Chandali, Telgaon, Pugu, Bangaru, Karaundi, Dumardih and Murkunda in Gumla Police Station and Raidih, Chainpur and Dumri Police Stations in Gumla sub-division.

69.

Bishunpur (ST).- Bishunpur and Ghaghra Police Stations and Gumla Police Station (excluding Gumla municipality and G.Ps. Hurhuria, Ghatagaon, Asani, Chandali, Telgaon, Pugu, Bangaru, Karaundi, Dumardih and Murkunda) in Gumla sub-division; and Senha Police Station in Lohardaga sub-division.

70.

Simdega (ST).- Simdega and Kurdeg Police Stations in Simdega sub-division; and Palkot Police Station in Gumla sub-division.

71.

Kolebira (ST).- Kolebira, Thethaitangar and Bolba Police Stations in Simdega sub-division.
Lohardaga District

72.

Lohardaga(ST).- Lohardaga Kuru and Kisko Police Stations in Lohardaga sub-division.

Palamau District

73.

Manika (ST).- Latehar Police Station (excluding Latehar (N.A.C.) and G.Ps. Pochra, Luti, Kaima, Kura, Bishunpur, Mungar, Nindir, Laharpur and Zalim), Barwadih, Garoo and Mahuadanr Police Stations in Latehar sub-division.

74.

Latehar (SC)- Latehar (N.A.C.), G.Ps. Pochra, Luti, Kaima, Kura, Bishunpur, Mungar, Nindir, Laharpur and Zalim in Latehar Police Station, Chandwa and Balumath Police Station in Latehar sub-division.

75.

Panki.- Panki, Lesliganaj and Manatu Police Station in Palamu Sadar sub-division.

76.

Daltonganj.- Daltonganj and Chainpur Police Station in Palamau Sadar sub-division; and Bhandaria Police Station in Garhwa sub-division.

77.

Bishrampur.- Bishrampur Police Station in Palamau Sadar sub-division; and Majhiaon Police Station in Garhwa sub-division.

78.

Chhatarpur (SC).- Chhatarpur and Patan Police Station
in Palamau Sadar sub-division.

79.

Hussainabad.- Hussainabad and Hariharganj Police
Station in Palamau Sadar sub-division.

Garhwa District

80.

Garhwa.- Garhwa Police Station (excluding G.Ps. Jarhi
Balekhar Raro, Sonehara and Dandai) and Ranka Police Station in
Garhwa sub-division.

81.

Bhawanathpur.- Bhawanathpur and Nagar Untari Police
Station and G.Ps. Jarhi, Balekhar, Raro, Sonehara and Dandai in
Garhwa Police Station in Garhwa sub-division.

The Third Schedule

(See section 17)

Sitting Members who shall continue to be members of the Bihar Legislative Council till their respective present terms of
office

(i)

Members representing any of the eleven Constituencies specified in item (1) of the [Fourth Schedule]
[Substituted by Notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

.

(ii)

The following members elected by the members of the Bihar Legislative Assembly, namely:-

"1. Shri Sarfaraj Ahmed.

2. Shri Saryu Rai.

3. Shri Mahavir Lal Vishwakarma.

4. Shri Bhutnath Soren.

5. Shri Rajendranath Shahdev.

6. Smt. Vibha Ranjan.

7. Shri Badri Narayan Lal.

8. Shri Praveen Singh."

The Fourth Schedule

(See section 18)

Amendments to the Delimitation of Council Constituencies (Bihar) Order, 1951

(1)

In the Table, omit the entries relating to-

(i)

Bhagalpur-cum-North Chhotanagpur (Graduates) Constituency;

(ii)

South Chhotanagpur (Graduates) Constituency;

(iii)

Bhagalpur-cum-North Chhotanagpur (Teachers) Constituency;

(iv)

South Chhotanagpur (Teachers) Constituency;

(v)

Santhal Parganas (Local Authorities) Constituency;

(vi)

Hazaribagh (Local Authorities) Constituency;

(vii)

Giridih (Local Authorities) Constituency;

(viii)

Ranchi (Local Authorities) Constituency;

(ix)

Palamau (Local Authorities) Constituency;

(x)

Dhanbad (Local Authorities) Constituency;

(xi)

East Singhbhum-cum-West Singhbhum (Local Authorities) Constituency.

(2)

In the Table, in column 2,-

(i)

against "Kosi (Graduates) Constituency" in column 1, after the word "khagaria", insert the words "Bhagalpur Monghyr";

(ii)

against "Kosi (Teachers) Constituency" in column I, after the word "Khagaria", insert the words "Bhagalpur Monghyr".

The Fifth Schedule

(See Section 23)

Amendment of the Constitution (Scheduled Castes) Order, 1950

In the Constitution (Scheduled Castes) Order, 1950, in the Schedule,-

(i)

in Part III relating to State of Bihar, in item No. 5, the brackets and words" (excluding North Chhotanagpur and South Chhotanagpur divisions and Santal Parganas district)", shall be omitted;

(ii)

after Part VI, Himachal Pradesh, the following shall be inserted, namely:-

"Part VIA -Jharkhand

1. Bantar

2. [Bauri]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

3. Bhogta

4. Bhuiya

5. Chamar, Mochi

6. [Chaupal]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

7. [Dabgar]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

8. Dhobi

9. Dom, Dhangad

10. Dusadh, Dhari, Dharhi

11. Ghasi

12. Halalkhor

13. [Hari, Mehtar, Bhangi]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

14. Kanjar

15. [Kurariar]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

16. Lalbegi

17. Musahar

18. Nat

19. Pan, Sawasi

20. Pasi

21. Rajwar

22. Turi."

The Sixth Schedule

(See section 24)

Amendment to the Constitution (Scheduled Tribes) Order, 1950

In the Constitution (Scheduled Tribes) Order, 1950,-

(1)

in paragraph 2, for the figures "XXI", the figures "XXII" shall be substituted;

(2)

in the Schedule,-

(i)

in Part III relating to State of Bihar, the item No. 6 and the entries relating thereto, shall be omitted, and the item Nos. 7 to 30 shall be renumbered as item Nos. 6 to 29;

(ii)

after Part XXI, the following Part shall be inserted, namely:-

"Part XXII -Jharkhand

1. Asur

2. Baiga

3. Banjara

4. Bhathudi

5. Bedia

6. Binjhia

7. Birhor

8. Birjia

9. Chero

10. [Chik Baraik]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

11. Gond

12. Gorait

13. Ho

14. Karmali

15. Khanria

16. Kharwar

17. Khond

18. Kisan

19. Kora

20. Korwa

21. Lohra

22. Mahli

23. [Mal Paharia]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

24. Munda

25. Oraon

26. Parhaiya

27. [Santal]

[Substituted by notification No. G.S.R. 675(E) (w.e.f. 19-8-2003).]

28. Sauria Paharia

29. Savar

30. Bhumij."

The Seventh Schedule

[See section 46 (1)]

(Investments and Credits in certain funds)

1. State Provident Funds.

2. Trusts and Endowments.
 3. Insurance and Pensions Funds.
 4. Depreciation Reserve Funds-relating to Government Commercial Departments and Undertakings.
 5. Famine Relief Funds.
 6. Investment Account.
 7. Development Fund for Educational Purposes.
 8. General Reserve Funds of Government Commercial Departments Undertakings.
 9. Zamindari Abolition Funds.
 10. Calamity Relief Fund Investment Account
 11. Revenue Deposits.
 12. Security Deposits.
 13. Civil Courts' Deposits.
 14. Criminal Courts' Deposits.
 15. Personal Deposits.
 16. Trust Interest Funds.
 17. Public Works Deposits.
 18. Forest Deposits.
 19. Deposits of Public Funds.
 20. Other Departmental Deposits.
 21. Deposits under various Central and State Acts.
 22. Deposits for work done for Public bodies or private individuals.
 23. Deposits of fees received by Government servants for works done for private bodies.
 24. Deposits in connection with Elections.
 25. Mines Labour Welfare Deposits.
 26. Deposits of Educational Institutions.
 27. Unclaimed Deposits in the General Provident Fund.
 28. Unclaimed Deposits in other Provident Funds.
 29. Deposits on account of cost price of Liquor, Ganja and Bhang.
 30. District Funds.
 31. Municipal Funds.
 32. Cantonment Funds.
 33. Funds of Insurance Association.
 34. State Transport Corporation Fund.
 35. State Electricity Boards Working.
 36. State Housing Funds.
 37. Panchayats Bodies Funds.
 38. Education Funds.
 39. Medical and Charitable Funds.
 40. Other Funds.
 41. Subventions from Central Road Fund.
 42. Miscellaneous Deposits.
- The Eighth Schedule
(See section 53)

Apportionment of Liability in Respect of Pensions and other Retirement Benefits

1. Subject to the adjustments mentioned in paragraph 3, each of the successor State shall in respect of pension and other retirement benefits sanctioned before the appointed date, pay from their respective treasuries.
2. Subject to the said adjustment, the liability in respect of pensions and other retirement benefits of officers serving in connection with the affairs of the existing State of Bihar who retire or proceed on leave preparatory to retirement before the appointed day, but whose claims for pensions and other retirement benefits are outstanding immediately before that day, shall be the liability of the State of Bihar.
3. Subject to the said adjustments, sanctions of such pension and other retirement benefits by the competent authority

may be given in those cases, in which their office falls in the territory of Jharkhand State.

4. There shall be computed, in respect of the period commencing on the appointed day and ending on the 31st day of March of the financial year and in respect of each subsequent financial year, the total payments made in all the successor States in respect of pensions and other retirement benefits referred to in paragraphs 1 and 2. The total representing the liability of the existing State of Bihar in respect of pensions and other retirement benefits shall be apportioned between the successor States in the ratio of number of employees of each successor State and any successor State paying more than its due share shall be reimbursed the excess amount by the successor State or State paying less.

5. The liability of the existing State of Bihar in respect of pensions and other retirement benefits granted before the appointed day and drawn in any area outside the territories of the existing State shall be the liability of the State of Bihar paying subject to adjustments to be made in accordance with paragraph 3 as if such pensions and other retirement benefits had been drawn in any treasury in the State of Bihar under paragraph 1.

6. The liability in respect of the pensions and other retirement benefits of any officer serving immediately before the appointed day in connection with the affairs of the existing State of Bihar and retiring on or after that day, shall be that of the successor State granting him the pension and other retirement benefits, but the portion of the pension and other retirement benefits attributable to the service of any such officer before the appointed day in connection with the affairs of the existing State of Bihar shall be allocated between the successor States in the population ratio and the Government granting the pension and other retirement benefits shall be entitled to receive from each of the other successor States its share of this liability.

7. Any reference in this Schedule to a pension and other retirement benefits shall be construed as including a reference to the commuted value of the pension and other retirement benefits.

The Ninth Schedule

[See section 65(1)]

List of State Owned Corporations/ Companies

1. Bihar State Industries Development Corporation.
2. Bihar State Leather Development Corporation.
3. Bihar State Electronics Development Corporation.
4. Bihar State Sugar Corporation Limited.
5. Bihar State Medicine and Chemical Development Corporation.
6. Bihar State Fruit and Vegetables Development Corporation.
7. Bihar State Dairy Corporation Limited.
8. Bihar State Agro Industries Corporation.
9. Bihar State Textiles Corporation Limited.
10. Bihar State Small Industries Corporation Limited.
11. Bihar State Handloom and Handicrafts Corporation
12. Bihar State Khadi Gramudyog Board
13. Bihar State Agriculture Marketing Board.
14. Bihar State Forest Development Corporation Limited.
15. Bihar State Export Development Corporation Limited.
16. Bihar State Seeds Corporation Limited.
17. Bihar State Fish Seeds Development Corporation Limited.
18. Bihar State Warehousing Corporation.
19. Bihar State Tourism Development Corporation Limited.
20. Bihar State Road Transport Corporation.
21. Bihar State Food and Civil Supplies Corporation.
22. Bihar State Text Book Publishing Corporation Limited.
23. Bihar State Construction Corporation Limited.
24. Bihar State Mineral Development Corporation Limited.
25. Bihar State Housing Board.
26. Bihar State Bridge Construction Corporation Limited.
27. Bihar State Police Building Construction Corporation Limited.

28. Bihar State Electricity Board.
29. Bihar State Hydroelectric Power Corporation Limited.
30. Bihar State Hill Area and Irrigation Development Limited.
31. Patna Industrial Area Development Authority.
32. Bokaro Industrial Area Development Authority.
33. Ranchi Industrial Area Development Authority.
34. Adityapur Industrial Area Development Authority.
35. North Bihar Industrial Area Development Authority.
36. Darbhanga Industrial Area Development Authority.
37. Patna Area Development Authority.
38. Ranchi Area Development Authority.
39. Muzaffarpur Area Development Authority.
40. Darbhanga Area Development Authority.
41. Gaya Area Development Authority.
42. Bihar State Pollution Control Board.
43. Bihar State Water and Sewage Disposal Board.
44. Bihar State Financial Corporation.
45. Bihar State Credit and Investment Corporation Limited.
46. Bihar State Panchayati Raj Finance Development Corporation Limited.
47. Bihar State Minorities Finance Corporation Limited.
48. Bihar State Film Development and Finance Corporation Limited.
49. Electricity Corporation Limited.
50. Mines Area Development Authority, Dhanbad.
51. Hazaribagh Mines Board.
52. Bhagalpur Regional Development Authority, Bhagalpur.
53. Women's Development Corporation.
54. Backward Classes Development Corporation.
55. Scheduled Castes Development Corporation.
56. Scheduled Tribes Development Corporation.

The Tenth Schedule

(See section 70)

Continuance of Facilities in certain State Institutions

List of Training Institution/ Centres

1. Sri Krishna Institute of Public Administration.
2. Police Training College.
3. Bihar Institute of Rural Development.
4. Village Handicrafts Training Centre.
5. Tribal Village Handicraft Training Centres.
6. Training-cum-Production Centres for Toys, Ceramic Goods, Embroidery and Applique, Hornmade goods and Cutting and Tailoring.
7. Ideal Woodwork Workshops/Iron Workshops.
8. Indo Danish Tool Room and Training Centre, Jamshedpur.
9. All Government Industrial Institutes.
 - Affiliated with N.C.V.T.
 - Un-affiliated.
10. All Private Industrial Institutes.
 - Affiliated with N.C.V.T. ;
 - Un-affiliated.
11. B.I.T., Sindri.
12. R.I. T., Jamshedpur.
13. Government Polytechnic, Dhanbad.

14. Government Polytechnic, Ranchi.
15. Government Polytechnic, Adityapur.
16. Government Polytechnic, Khutri.
17. Government Polytechnic, Lathehar.
18. Government Women's Polytechnic, Jamshedpur.
19. Government Women's Polytechnic, Ranchi.
20. Government Women's Polytechnic, Bokaro.
21. Mines Institution, Dhanbad.
22. Mines institution, Bagha.
23. Mines Institution, Koderma.
24. Government Polytechnic, Dumka.
25. Government Women's Industrial School, Ranchi.
26. Government Women's Industrial School, Hazaribagh.
27. Government Women's Industrial School, Daltonganj.
28. Sainik School, Tilaiya.
29. Netarhat School.
30. Indira Gandhi Girls School, Hazaribagh

Related AI tags, queries and research notes

Translation